

AGREEMENT ON THE REFERRAL OF INTERNATIONAL PATIENTS

THIS AGREEMENT ON THE REFERRAL OF INTERNATIONAL PATIENTS shall be made by and between _____ (hereinafter referred to as Party A) and _____ (hereinafter referred to as Party B, and collectively Parties) under the terms and conditions stipulated hereunder (hereinafter referred to as the Agreement).

ARTICLE 1 [PURPOSE]

The purpose of this Agreement is to set forth the rights and obligations of Party B who refers potential customers to Party A and Party A who shall provide the referred customers with medical services, and to comply with such rights and obligations in good will to drive business and cooperative relations between the Parties towards common prosperity and development.

ARTICLE 2 [DEFINITION]

The following definition of terms remains true unless otherwise indicated in the regulations.

① *Medical Charges* refer to any and all costs directly related to the medical services provided by Party A including, but not limited to, the expenses incurred by infirmary, treatment, medicine, diagnosing, emergency treatment, radiation/clinical examination, and food supplies which Party A will bill Party B or its customers or an insurance company. Exceptions apply to customers' personal expenses spent on the caregiver, outpatient medicine and/or medical devices, issuance of certificates, and other supplies, as well as expenses not directly related to the medical services of this Agreement.

② *Medical Services* refer to any and all relevant services provided to the inpatients, outpatients, and health screening customers by Party A including, but not limited to, screening and clinical care, emergency treatment, infirmary, nursing, home nursing,

administration, intensive care, surgery, treatment materials, blood transfusion, testing, and radiation/clinical examination, and ambulance.

③ *Non-Medical Services* refer to services other than Medical Services provided by Party B upon customers' request such as administrative affairs, issuing visas, arranging transportation and/or accommodation, translation, and local tour.

④ *Commission* refers to any fee paid by Party A to Party B based on the agreed price or rates regarding medical costs incurred by customers referred to Party A by Party B as a result of Medical Services.

⑤ *Deposit* refers to the basic cost required to provide Medical Services to customers by Party A, such as those for infirmary or doctors' appointment, which can be negotiated in further details between the Parties.

ARTICLE 3 [APPOINTMENT OF AN AGENT]

① Party A appoints Party B as its non-exclusive agent in the _____ region (hereinafter referred to as the Region), and shall grant any changes, such as the expansion or reduction of the Region, in the form of a written document upon agreement between the Parties.

② Party B has no property rights whatsoever over the customers or list of customers and agrees to share the list with Party A.

③ Party B shall obtain any necessary regulatory approvals requested by the country where Party B committed to perform services for Party A under the Agreement.

ARTICLE 4 [EXECUTION AND TERMINATION OF THE AGREEMENT]

① This AGREEMENT shall be effective for one year and shall be automatically renewed under the same conditions unless terminated by written notice one month prior to the expiration date of the AGREEMENT.

② Obligations and duties of the Parties for inpatients shall continue regardless of the termination of this Agreement.

③ The Parties shall register as international patient organization pursuant to relevant laws and regulations, such as the Medical Service Act. Exceptions apply only under such circumstances where Party B is an overseas agency, and for all other agencies deemed to be performing sales activities within the territories of the Republic of Korea must otherwise register.

ARTICLE 5 [OBLIGATIONS AND DUTIES OF PARTY A]

① Party A shall provide Medical Services to customers according to this Agreement, on the condition that Party A reserves sole discretion to determine whether or not to proceed with medical procedures for any referred customers.

② Party A shall try to provide the customer, referred by Party B, with best Medical Services.

③ Before assisting the customer with Medical Services, Party A shall designate a contact department and a contact person who will guide the patient referred by Party B on anticipated medical procedures and estimated medical cost. Such medical procedures and cost proposed by Party A are by no means final and may be subject to considerable changes depending on the necessary care, for which Party B shall not pose any objections without a justifiable reason.

④ Party A shall issue an appointment confirmation letter for a meeting with the doctor at its organization based on the customer's medical records provided by Party B, and once issued, Party A shall not refuse care for Party B's customer without a justifiable reason.

⑤ When Party B requests relevant materials or explanations regarding medical procedures, following the written consent of Party B's customer, Party A shall respond to such request.

ARTICLE 6 [OBLIGATIONS AND DUTIES OF PARTY B]

① Party B shall try to advertise and recommend Party A to customers.

② Party B shall designate a contact department and a contact person for assisting Non-Medical Services, and ask Party A for any forms, regarding medical procedures customers

will receive, in writing, drawing, picture, or electrical document, in English or the language mainly used by the customer.

③ When Party B wishes to acquire the medical information of the customer, Party B shall submit to Party A a signed consent from the customer regarding the disclosure of information.

④ Party B may, at its own expenses, subcontract relevant third parties, such as travel agencies, to provide Non-Medical Services.

ARTICLE 7 [MEDICAL CHARGE]

① All Medical Charges shall be paid in Korean Won.

② Unless otherwise requested specifically by Party B, Medical Charges incurred in the course of the customer's stay at Party A's organization shall be borne by the customer and paid directly to Party A.

③ Party A will have no obligation to commence the provision of Medical Services to a customer if it has not received the deposit defined in Article 2, Paragraph 5 above.

④ In the case where Party B is delegated to pay for its customer's Medical Charges directly to Party A, a guarantee in the form of a written document, for each customer, shall be submitted on expected Medical Charges that may incur during the customer's stay at Party A's organization. The payment shall, in principle, be paid directly to Party A by Party B upon termination of the customer's care. When submitting the guarantee on payment, Party B shall also provide a document that verifies the contracted agreement between Party B and its customer.

⑤ If the customer fails to pay the complete amount of the current Medical Charge, Party B shall cooperate with Party A in making the best efforts to complete the payment.

ARTICLE 8 [COMMISSION]

① Party A shall pay Party B [] percent (including value-added tax) of the customer's monthly Medical Charge, calculated by dividing the customer's total Medical Charge by 12

months, as Commission, and such rate may be negotiated separately between the Parties according to the number of referred patients.

- Transfer to Bank: _____ Account Number: _____

② If the purpose of the visit of the customer who is referred to Party A by Party B is simply health screening, Party A shall pay Party B [] percent (including value-added tax) of the customer's monthly screening charge, calculated by dividing the customer's total screening charge by 12 months, as Commission, and such rate may be negotiated separately between the Parties according to the number of referred patients.

③ Commission shall be settled when the Medical Charges are completely paid by the customer or its guarantor (insurance company or others). Without a complete payment, Party A will not forward the Commission to Party B.

④ Party B shall invoice the Commission, calculated based on the Medical Charges paid by Party B or its customer for that month, to Party A by the fifth day of the next month, and Party A shall make the monthly payment to Party B by the fifteenth day of the next month. No separate interest rate shall be charged for the Commission.

⑤ When the same international patient referred by Party B revisits Party A's organization, or Party B's customer discovers illness after health screening and requires treatment within the same contract period, Party A shall pay the same Commission prescribed under the Article 8, Paragraph 1.

⑥ Party A shall not pay the Commission to Party B when Party B does not continuously provide the Non-Medical Services to the customer without a justifiable reason.

⑦ Party B shall not charge the customer the same Commission it receives from Party A for the purpose of referring international patients.

ARTICLE 9 [ADVERTISEMENT]

① Issues related to overseas advertisement and promotions of Party A by Party B shall be discussed between the Parties before any decisions.

② Expenses on advertisements, promotional items, and activities to attract patients within the region shall be borne by Party B. However, before advertising or promoting in public, Party B must show Party A in advance related draft works and only use drafts approved by Party A. If Party A disapproves of the draft, Party B shall change the work according to Party A's request within a reasonable scope.

③ With prior consent of Party A, Party B agrees that it will distribute advertising materials of Party A and develop any advertising activities using such materials to the extent that the applicable laws permit in countries of both Parties. Party B shall comply with Party A's policy to only use materials for purposes related to this Agreement.

ARTICLE 10 [MINIMUM REQUIREMENT OF REFERRALS]

The Parties may agree on a certain number of referrals Party B must achieve during a certain period under the Agreement, and Party A may terminate the Agreement if such minimum referral requirement is not met by Party B.

ARTICLE 11 [TERMINATION OF THE AGREEMENT]

① The following constitute justifiable reasons for terminating this Agreement. In such cases, Party A may send Party B a written notification 30 days prior to terminating this Agreement:

1. Party A or Party B is on the verge of bankruptcy.
2. Party B fails to achieve the minimum requirement of referrals stipulated in Article 10 of this Agreement, or Party A believes Party B is not a satisfactory performer fit for the purpose of this Agreement.
3. Party B violates or does not comply with the terms of this Agreement, nor corrects its wrongdoings even after the notification by Party A.

② In case one Party undergoes important changes, such as cancellation of registration as international patient organization or business closure, where the Agreement can no longer be in effect, that Party shall send a written notification on such changes, within 7 days from the date of occurrence, to its counterpart. The counterpart may terminate this Agreement if it

deems the Party no longer has the ability to implement the terms of this Agreement in the future.

ARTICLE 12 [FORCE MAJEURE]

① Neither party shall be liable or deemed to be in default for any delay or failure in performance during the term of this Agreement from force majeure. Force Majeure includes traffic jams, accidents beyond its control, epidemics, explosions, fires, thunders, earthquakes, storms, civil riots, disturbances, strikes, orders or actions from the governmental body, wars, martial laws, and other equivalents.

② Only, when strikes in the previous paragraph refer to internal strikes at Party A's organization, Party A shall make its best efforts to prevent any property or physical damages on the customer.

ARTICLE 13 [CONFIDENTIALITY]

Party A and Party B agree to comply with confidentiality on information related to other Party and not disclose to persons other than relevant individuals of this Agreement. In case of a violation, the violating Party will be responsible for both civil and criminal charges under the laws and regulations of the Republic of Korea.

ARTICLE 14 [LEGAL ISSUES]

① Party A shall be legally responsible for, within its medical facilities, accidents that happen to the customer referred by Party B during the medical procedure or treatment. Party B shall be legally responsible for accidents that happen to the customer other than those during the medical procedure or treatment.

② In case medical disputes occur between Party A and the customer, Party B shall make efforts to resolve the disputes. When a patient has passed away, both Parties shall cooperate in transferring the corpse via transportation, dispatching it to the patient's mother country, and preparing various documents related to his/her death.

③ Party A shall exempt Party B from the legal responsibilities the latter must take as a result of Party A's clinical errors or insolvency. In such cases, the scope of exemption will be determined by the final ruling of the relevant jurisdiction.

④ Party B shall exempt and protect Party A from any disputes that arise between Party B and the customer as a result of Party B's mistakes or insolvency.

ARTICLE 15 [ASSIGNMENT]

Party A and Party B shall not assign, transfer, or pledge the rights and obligations under this Agreement, partially or wholly, to a third party without the other Party's written consent.

ARTICLE 16 [DISPUTE RESOLUTION]

① This Agreement is governed by and interpreted in accordance with laws of the Republic of Korea

② Any and all disputes arising from non-compliance related to this Agreement shall be submitted to Seoul Central District Court(or Korean Commercial Arbitration Board) shall they lead to judgment(arbitration). The decision by the judge(arbitrator) shall be the final ruling and be binding to both Parties

ARTICLE 17 [MISCELLANEOUS]

① This Agreement includes all issues agreed between Party A and Party B related to this subject.

② Any changes or amendments to this Agreement shall be made after the Agreement goes into effect, and will not be binding unless both Parties sign the changes.

③ Any Party wishing to waiver the rights of this Agreement shall do so in the form of a written document. A non-compliance that has not been pointed out the first time does not imply a waiver of that obligation, and may be subject to reprimand the next time. A violation of an article under this Agreement that has not been indicated does not imply it will be permitted in the future, nor a change or waiver of that article.

④ This document may be translated into English or any other languages. The English(or Korean) version has precedence over other versions in case of any disputes or disagreements.

⑤ Any and all notifications intended for the other Party shall be sent in the form of a written document to the counterpart's address. The Parties should immediately notify each other of any changes to the address.

MM/DD, 2011

■ **Party A:** _____

Address: _____

Contact: ☎ _____ , **e-mail** _____

Head of Healthcare Organization _____ (Signature)

Representative (Name, Address)

■ **Party B:** _____

Address: _____

Contact: ☎ _____ , **e-mail** _____

Agent _____ (Signature)